Claims Payment Policy

Subject: Modifier 52

Application: Medicare Advantage and Kentucky Medicaid Products
Policy number: CP2008104
Related policies: Common CPT and HCPCS Modifiers

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Overview

According to the American Medical Association (AMA), "Under certain circumstances, a service or procedure is partially reduced or eliminated at the discretion of the physician or other qualified health care professional. Under these circumstances, the service provided can be identified by its usual procedure number and the addition of *modifier 52*, signifying that the service is reduced. This provides a means of reporting reduced services without disturbing the identification of the basic service."

This policy outlines Humana's billing requirements and reimbursement for services reported with *modifier 52*.

Medicare Advantage Payment Policy
Kentucky Medicaid Payment Policy
Definitions of *Italicized* Terms
References
General Humana Resources

Medicare Advantage Payment Policy

In addition to the policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

Modifier 52 should be used if the procedure is partially reduced, or if the procedure is discontinued either before anesthesia is administered or if anesthesia is not planned. Humana plans allow 50 percent of the contracted rate or the *base maximum amount payable under the member's plan* when *modifier 52* is appropriately appended to a procedure code. In certain circumstances, additional payment rules may apply.

Modifier 52 is not an appropriate modifier for an evaluation and management (E/M) code or a laboratory panel code. Therefore, an E/M or a laboratory panel code is denied if billed with *modifier 52*.

Kentucky Medicaid Payment Policy

In addition to the policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

Modifier 52 should be used if the procedure is partially reduced, or if the procedure is discontinued either before anesthesia is administered or if anesthesia is not planned. Humana plans allow 50 percent of the contracted rate or the *base maximum amount payable under the member's plan* when *modifier 52* is appropriately appended to a procedure code.

Modifier 52 is not an appropriate modifier for an E/M code or a laboratory panel code. Therefore, an E/M or a laboratory panel code is denied if billed with *modifier 52*.

Note: In certain circumstances, additional payment rules may apply. For example, when applicable, claims are subject to the Humana Healthy Horizons in Kentucky out-of-network payment policy. For more information, see the relevant guidance in the References section of this policy.

Definitions of *Italicized* Terms

- ***Base maximum amount payable under the member's plan:*** The maximum amount of reimbursement for a covered expense, determined by the member's plan. Depending on the plan, this may be the maximum allowable fee, the appropriate Medicare fee schedule rate or an amount derived from another payment model. Actual plan reimbursement may be less than this base maximum amount, because of applicable adjustments.
- ***Modifier 52:*** Reduced services.

References

- Centers for Medicare & Medicaid Services website. Medicare Claims Processing Manual. Chapter 4 – Part B Hospital (Including Inpatient Hospital Part B and OPPS). Sections 20.6.4 and 20.6.6. www.cms.gov.
- Centers for Medicare & Medicaid Services website. Medicare Claims Processing Manual. Chapter 12 – Physicians/Nonphysician Practitioners. Sections 20.4.6, 30.6.18, 40.2 and 40.4. www.cms.gov.
- Kentucky Cabinet for Health and Family Services website. Department for Medicaid Services. www.chfs.ky.gov.
- American Medical Association's CPT® and associated publications and services.
- Humana website. Humana Healthy Horizons in Kentucky. Humana.com.
- Humana website. Humana Healthy Horizons in Kentucky Policies Booklet. Out-of-Network Provider Requirements and Claim Payment Policy. Humana.com.

General Humana Resources

- Availity – Providers can register for access to information on a variety of topics such as eligibility, benefits, referrals, authorizations, claims and electronic remittances.
- Claims processing edit notifications – Alerts of upcoming claims payment changes are posted on the first Friday of each month.
- Claims resources – Providers can find information on referrals, authorizations, electronic claim submissions and more.
- Making it easier – This page contains an educational series for providers and healthcare professionals.
- Medical and pharmacy coverage policies – Humana publishes determinations of coverage of medical procedures, devices and medications for the treatment of various conditions. There may be variances in coverage among plans.
- Publications – This page can help you find our quarterly newsletter, provider manual and other resources to help you do business with us.

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